THE ADMINISTRATION OF UNION TERRITORY OF LADAKH
LADAKH AUTONOMOUS HILL DEVELOPMENT COUNCIL LEH
OFFICE OF THE EXECUTIVE ENGINEER RURAL ENGINEERING WING LEH
Email: rewleh7@gmail.com Tel: 01982-252732

e-Notice inviting Tender (Fresh)

NIT No: - 62- UTL REWL OF 2023-24

Dated: 06-09-2023

For and on behalf of the Lt. Governor, UT Ladakh, Executive Engineer REW Leh invites tenders by e-tendering on percentage basis from approved and eligible Registered Contractors with Union Territory Ladakh/J&K /CPWD/Railways and other State/Central Governments for the following works.

S.No	Name of Work	Estt. Cost (Rs. In Lacs)	Cost of T/Doc. (Amt in Lacs)	Earnest Money (Amt In Lacs)	Time of completion	Time & Date of Opening of Bid	Scheme	Class of Contractor
1.	Const. of public library at mangue	43.00	0.010	86000	60 days	15-09-23	SDP	A&B CLass
2.	Const. of link road from main road to Tsigar pa Zum	33.00	0.010	66000	60 days	15-09-23	SDP	A&B CLass
3.	Const. of link road from Gompa mohalla to connect Yarnam Road	22.93	0.010	45900	60 days	15-09-23	SDP	B&C Class
4.	Completion of C/hall at Mitsikchulung Mohalla back side of grand dragon	7.00	0.005	14000	60 days	15-09-23	CCDF	C&D Class
5.	Const. of public park khaltsi	40.00	0.010	80000	60 days	15-09-23	SDP	A&B CLass
6.	Const. of CFC Chushul Phase-2	20.00	0.010	40000	60 days	15-09-23	SDP	B&C Class
7.	Const. of CFC Maan Pangong B Phase-2	25.00	0.010	50000	60 days	15-09-23	SDP	B&C Class
8.	Const. of public park at Phey	43.20	0.010	86400	60 days	15-09-23	SDP	A&B CLass
9.	Const. of public park at Hemishukpachan	46.15	0.010	92300	60 days	15-09-23	SDP	A&B CLass

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10	Const. of CFC at Shashukul Phase 2	15.00	0.010	30000	60 days	15-09-23	SDP	B&C,D Class

AA: Accorded
TS : Sanctioned
Position of funds: Partially Available

CRITICAL DATES TABLE

1.	Date of Issue of Tender Notice	**06-09-2023**
2	Date of publishing tender	**06-09-2023 at 1700 Hrs.**
3.	Period of downloading of bidding documents	**From 06-09-2023 1700 Hrs to 13-09-2023, 1400 Hrs**
4.	Bid submission **Start Date**	**06-09-2023 1700 Hrs**
5.	Bid Submission(online) **End Date**	**13-09-2023, 1400 Hrs**
6.	Deadline for receiving the Hard Copy **(Original DD & EMD) [The date should be one day after bid submission end date]**	**14-09-2023 upto 1600 Hrs in the Office of the Executive Engineer REW Leh.**
7.	Date & time of Opening of Technical Bids **(Online) [The date should be one day after deadline for receiving of hard copies]**	**15-09-2023 at 1100 HRS in the Office of the Executive Engineer REW Leh.**
8.	Scan copy of:	**1)** EMD **2)** Cost of document **3)** Pan Card **4)** Registration card (renewed upto date) **5)** GST Registration Number /Clearance **6)** EPFO registration **7)** Experience certificate **8)** Turnover
9.	Date & time of opening of Financial Bids **(Online)**	**To be notified after technical bid evaluation**

Scope of Work:

1. The Bidding documents Consisting of qualifying information, eligibility criteria, specifications, Drawings, bill of quantities (BOQ), Set of terms and conditions of contract and other details can be seen/downloaded from the departmental website https://tenders.ladakh.gov.in as per schedule of dates given below: A -
2. Bids must upload with cost of Tender document in **receipt of Online payment (UPI/Net banking) in favour of Executive Engineer Rural Engineering Wing Leh having AC NO.0069010200000097 IFSC Code: JAKA0PRIEST JK Bank Main Branch Leh** and Earnest money /Bid security in shape of **CDR/FDR pledged to Executive Engineer Rural Engineering Wing Leh Payable at Leh .**
3. The Bid security is returned to those applicants who are not qualified at Technical Bid stage immediately after completion of the empanelment process and the Bid security of the empaneled applicants will be returned after completion of their agreement period.
4. **Bidders can resubmit / withdraw the bids as specified.**
5. The date and time of opening of Financial-Bids shall be notified on website https://tenders.ladakh.gov.in and conveyed to the bidders automatically through an e-mail message on their e-mail address. The **Financial-bids of Responsive/Successful bidders** shall be opened online in the office of the Executive Engineer Rural Engineering Wing Leh.
6. The bids for the work shall remain **valid for a period of 120 days from the date of opening of bids.**
7. No Engineer of Gazetted Rank or other Gazetted Officer employed in Engineering of Administrative duties in an Engineering Department of the State Government is allowed to work as a Contractor for a period of two years after his retirement from Government Service, without permission of the Government. The contract is liable to be cancelled if either the contractor or

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any of his employees is found any time to be such a person who had not obtained the permission of the Government as other aforesaid before submission of the tender or engagement in the contractor's service.

The earnest money shall be forfeited/Suspend, If:-

(a) If the tendered withdraws or amends its tender or derogates from the tender in any respect within the pe.riod of validity of its tender.

(b) If the successful bidder fails to furnish required act of performance as per the terms and conditions of tender/contract.

8. **(ITB) Instruction to bidders regarding e-tendering process.**

(a) To participate in bidding process, bidders have to get (DSC) "Digital Signature Certificate "as per information Technology Act-2000 to participate in online bidding. This certificate will be required for digitally signing the bid. Bidders can get above mentioned digital certificate from any approved vendors. The Bidders, who already process valid (DSC) Digital Signature Certificate, need not to procure new Digital Signature Certificate

(b) The bidders have to submit their bids online in electronic format with Digital Signature. The bids cannot be uploaded without Digital Signature. No proposal will be accepted in physical form.

(c) Bids will be opened online as per mentioned Date & time schedule.

(d) Bidders must ensure to upload scanned copy of all necessary documents with technical bid. Besides, documents related to technical bid be submitted physically before date of opening of technical bid. The department will not be responsible for delay in online submission due to any reasons.

Note: - Scan all the documents on 100 dpi with black and white option.

9. Bidders may contact office of **the Executive Engineer Rural Engineering Wing Leh** for any guidance for getting DSC or any other relevant details in respect of e-tendering process.

10. Bidders are advised not to make any change in BOQ (Bill of Quantities) contents. In no case they should attempt to create similar BOQ manually. The BOQ downloaded should be used for filling the item rate inclusive of all taxes and it should be saved with the same name as it contains.

BID Document consists of Two Cover System :- All Bidders shall include the following information and documents with their bids.

COVER ONE: Technical Bid/Qualification Criteria:

(a) To qualify for award of contract the bidders must demonstrate having experience and resources sufficient to meet the aggregate of the qualifying criteria for Technical Bid.

b) Valid Tin No with latest GST clearance certificate, PAN No and CDR/FDR/Bank Guarantee.

c) All the bid documents must be uploaded with the bid, & submit as hard copy.

d) Affidavit and undertaking should be submitted as originals: that the bidders are not blacklisted/debarred by any Govt or Semi-Govt. Department from participation in tendering, availability of technical staff essential for carrying out the work.

Format: Availability of key equipment/machinery items essential for carrying out the work.

S.No	Type of Equipment	Nos.
1.	Tipper	02
2.	Excavator	02
3.	Lift Mixer	02
4.	Vibrator	02
5.	Water resistant shuttering	As required in BOQ uploaded.

Note: Even though the bidders meet the above qualifying criteria. They are subject to be disqualified if they have made misleading or false representation in the forms statements and attachments submitted in proof of the qualification requirements and /or record of poor performance such as abandoning the works, not properly completing the contract, inordinate delays in complaints, litigation history, or financial failure etc and /or participated in the previous bidding for the same works and having quoted unreasonably high bid price and failed to furnish rational justification of the Employer.

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Format: Technical Staff Details: Qualification and experience of key personnel required for administration and execution of the contract with Bio-data.

S.No	Technical staff		Qualification	Experience
1	Engineer at site	1 No	Degree Holder/Diploma	3/5 years
2	Works Supervisor	2 Nos	ITI/10+2	5 Years

Cover Two: Financial Bid should contain the following documents:

a) Financial Bid in the format of BOQ, uploaded on the site.

b) The Contract shall be for the whole works based on the priced Bill of Quantities (BoQ) submitted by the Bidder. The Bidder shall adopt items rate only.

c) All duties taxes, royalties and other levies payable by the contractor under the contract, or for any other cause shall be included in the rates, prices and total bid price submitted by the bidder. The rates and prices quoted by the Bidder shall be fixed for the duration of the contract and shall not be subject adjustment on any account.

d) Rates quoted shall be deemed to include escalation, all taxes, duties etc. whatever during contract period.

11. **Selection Criteria/Examination of Bids and Determination of Responsiveness:**

(a) During the detailed evaluation of "Technical Bids", the Employer will determine whether each Bid meets the eligibility criteria as mention in bid document, has been properly signed, is accompanied by the required securities; and is substantially responsive to the requirements of the bidding document. A subsequently responsive "Financial Bid" is one which conforms to all the terms, conditions, and specifications of the bidding documents, without material deviation or reservation. A material deviation or reservation is one which affects in any substantial way, inconsistent with the bidding documents, the employer's rights or the Bidder's obligations under the contract; or whose rectification would affect unfairly the competitive position of other bidders presenting substantially responsive bids.

(b) If an "Financial Bids" is not substantially responsive, it will be rejected by the employer, and may not subsequently be made responsive by corrections or withdraw of the non-conforming deviation or reservation.

12. **General Terms & Conditions:**

a) The successful bidder will be expected to complete the work by the intended completion dated specified in the NIT and shall rectify all the defects during defect liability period of six months.

b) Even though the bidders meet the above qualifying criteria, they are subject to be disqualified if they have: 1) Made misleading or false representations in the forms, statements, affidavits and attachments submitted in proof of the qualification requirements: and/or 2) Record of proof performance such as abandoning the works, not properly completing the contract, inordinate delays in completion, litigation history, or financial failures etc.

c) In case of any typographical error, if found in the rates, quantities or units etc. the same shall be corrected and paid as per sanctioned schedule of rates 2012 in vogue and as per the proposed estimates with contractor's Tender appreciations/depreciation.

d) The contractor shall personally liable for civil and criminal prosecution under law, if specification of the work/materials used are found in contravention to the specifications prescribed during execution of work and even after completion and finalization of contract i.e. at any stage. 17. He will abide by all prevailing labour laws and will be personally responsible for any causality/eventually/accident during the period of contract.

e) Any item or items of work found necessary during execution of work through not advertised in the rate list shall have to be got executed and paid as per sanctioned schedule of rates 2012 wherever applicable with contractor's appreciation/depreciation.

f) For any dispute between the contractor and department the jurisdiction of Leh Court will be applicable.

13. **Defect liability period**: -The DLP shall be calculated form date of certified of completion work and period shall be 12 months.

14. **Specifications:** All the material supplied / required for execution of allotted work shall be of First quality conforming to the latest relevant BIS standards/or other approved norms and specifications contained in the B.O.Q.

15. **Safety:** - The contractor shall be responsible for safety of all activities at site of work.

16. **Termination:** - The employer may terminate the contract if the contractor causes a fundamental breach of the contract. Fundamental Breach of contract will include **i.** Continuous stoppage of work for a period of 30 days without authorization of Engineer in charge. **ii.** Contractor is declared bankrupt. **iii.** Any evidence of involvement of contractor in corrupt practices.

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iv. Contractor delays the completion of work beyond stipulated time of completion. **v.** Pursuant to the process of termination of default contract, the Employer (Executive Engineer) reserves the right to invite fresh tender for balance work at the risk and cost of defaulting contractor. **vi.** If in case contractor failed to start the work/completion of work, the stipulated period, his CDR/Earnest money shall be forfeited after termination of the contract. Besides, defaulting contractor shall be debarred from taking works in Executive Engineer, REW Leh at least for one year.

17. **Arbitration:** All legal proceedings in connection with the order/ tender will be subject to the jurisdiction of local courts UT Ladakh only. In case of any doubt, dispute or difference arising out of the contract, the same shall be referred to the Executive Engineer REW, Leh. Whose decision shall be binding upon both the parties.

18. **Schedule of Payment**: The payment schedule shall be fixed after award of contract in favour of successful bidder, on the basis of availability of funds and value of work executed which shall be determined by the Engineer.
19. **Retention Money and Maintenance Liability**: 10% of the bill amount shall be deducted from each running bill of the successful contractor as security deposit which shall be released after virtual completion of the work in all respect.
    a) 50% of such deposit after six (06) months after date of completion.
    b) 25% of such deposit after one (1) year after date of completion.
    c) 25% of such deposit after one and half (1.5) years of defect liability to be counted from Virtual date of completion
20. **Unbalanced Bids**:

S.No	Percentage of unbalance bid viz Advertised cost on account of low quoted rates. Additional	Additional performance security on the difference of Avdt. cost.
1	Up to 10%	Nil
2	11% to 20%	10%
3	21% to 30%	15%
4	Beyond 30%	Rejected

21. The tender inviting authority has the right to reject all or any tender without assigning the reason.
22. The advertising quantities could be increased or decreased (15%-20%) as per actual at site.

ote: The Lowest Bidder (L1) has to attend the office of undersigned for signing/execution of agreement bond and negotiation of ıtes (if required) within 03 days after opening of financial bids without fail.

SD/-
Executive Engineer
Rural Engineering Wing
Leh
Dated:-06-09-2023

NO: REWL/e-Tender/2023-24/ 9175 - 92
-07-2023

Copy to the:-

1. Director Rural Development Ladakh for kind information.
2. Deputy Commissioner/CEO, LAHDC, Leh for kind information.
3. Superintending Engineer PMGSY (I/C SE RDD Leh) for kind information.
4. Assistant Commissioner Development/Project Officer (Wage) Leh for information.
5. Project Manager IWMP , Leh for information.
6. Deputy Director, CAD, Leh for information
7. District Informatics Officer, Leh. He is requested to kindly publish the Gist of NIT on the official District Website.
8. District Panchayat Officer, Leh for information.
9. Block Development Officer, for information.
10. P.A to Hon'ble Executive Councillor (Agri/RDD) LAHDC, Leh for kind information of Hon'ble EC (Agri/RDD).
11. Assistant Engineer, REW for information.
12.. Draftsman REW for information.
13. President Contractor Association, Leh for information.

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15. Notice Board of Deputy Commissioner/CEO, Leh/Rural Development Department Complex Leh.

Signature Not Verified
Digitally signed by GIGMETH DORJAI
Date: 2023.09.06 14:16:24 IST
Location: Ladakh UT

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